

25SMCV01927 25SMCV01927

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TENTATIVE RULING

July 20, 2026

25SMCV01927 (Rodriguez v. Groom)

RELEVANT BACKGROUND

On April 9, 2025, plaintiffs Kayle Rodriguez (Kayle) and Javier Rodriguez (Javier) (collectively, Plaintiffs) filed their complaint against defendant M. Kathleen Groom (Defendant) and Does 1-25, alleging motor vehicle negligence.

INSTANT MOTIONS

On June 4, 2026, Defendant filed the instant motions to compel Javier's initial responses to Form Interrogatories, Set One, Special Interrogatories, Set One, and Requests for Production of Documents, Set One, and Requests for Admissions, Set One.

No oppositions have been filed.

DISCUSSION

Within 30 days after service of interrogatories, the responding party shall serve a response to the propounding party. (Code Civ. Proc., § 2030.260, subd. (a).) If a party to whom interrogatories are directed fails to serve a timely response,

the propounding party's remedy is to seek a court order compelling answers thereto. (Id., § 2030.290, subd. (b).) "The party to whom the interrogatories are directed shall sign the response under oath unless the response contains only objections." (Id., § 2030.250, subd. (a).)

Within 30 days after

service of a demand for inspection, copying, testing, or sampling, the party to whom the demand is directed shall serve a response on the propounding party. (Id., § 2031.260, subd. (a).) If a party to whom a demand is directed fails to serve a timely response, the propounding party's remedy is to seek a court order compelling responses to the inspection demand. (Id., § 2031.300, subd. (b).) "The party to whom the demand for inspection, copying, testing, or sampling is directed shall sign the response under oath unless the response contains only objections." (Id., § 2031.250, subd. (a).)

Within 30 days after

service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared, unless on motion of the requesting party the court has shortened the time for response, or unless on motion of the responding party the court has extended the time for response. (Id., § 2033.250.) "The party to whom the requests for admissions are directed shall sign the response under oath, unless the response contains only objections." (Id., § 2033.240, subd. (a).)

An unverified discovery response is

treated as no response. (*Steele v. Totah* (1986) 180 Cal.App.3d 545, 549; *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636-637.) But unverified objections are effective responses. (*Blue Ridge Ins. Co. v. Superior Court* (1988) 202 Cal.App.3d 339, 344 ["The party to whom the demand for inspection is directed shall sign the response under oath unless the response contains only objections."].) Where there are mixed objections and answers, an unverified response is valid as to the numbers containing objections. (*Food 4 Less Supermarkets, Inc. v. Superior Court* (1995) 40 Cal.App.4th 651, 658.)

Defendant's motions to compel

Javier's initial responses to the identified discovery are DENIED. Although the responses provided by Javier to the identified discovery are unverified, the responses consist of objections only. (LaScola Decl., ¶ 4-8; Ex. A-C.) Unverified

objections are effective responses. (Appleton, 206 Cal.App.3d at pp. 636-637; Blue Ridge, 202 Cal.App.3d at p. 344.)

Based on the foregoing, Defendant's request for monetary sanctions is DENIED.